BEFORE THE PUBLIC UTILITIES COMMISSION OF THE STATE OF CALIFORNIA

Order Instituting Rulemaking to Modernize the Electric Grid for a High Distributed Energy Resources Future.	Rulemaking 21-06-017 (Filed June 24, 2021)

OPENING COMMENTS OF DONALD C. JACKSON ON THE PROPOSED DECISION ADDRESSING TRACK 3 ISSUES

SUBJECT INDEX OF RECOMMENDED CHANGES

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2. Apply to the advice letters and workshops this decision orders the same open, standardized and interoperable communications requirement the Commission has already placed on the orchestration application, and adopt technology and provider neutrality in a finding of fact and a conclusion of law (Section II.B; Appendix A)----------4

3. Require that an operating envelope delivered to a customer's technology provider also be made available to the customer, machine-readable, over an open protocol, at a server address the customer can configure (Section III.A; Appendix A)----------6

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TABLE OF AUTHORITIES

Commission Decisions and Resolutions

D.26-02-025

D.24-10-030

D.26-09-058

Resolution E-5038

Commission Rules of Practice and Procedure

Rule 1.4

Rule 1.18

Rule 14.3

Proposed Decision

Proposed Decision Adopting an Application Process for Utility Distributed Energy Resources Orchestration and Ordering Utilities to Incorporate Load Flexibility Scenarios into their Distribution Planning and Execution Processes, mailed September 25, 2026, Ordering Paragraphs 3, 8, 20 and 21

Proposed Decision Addressing Track 3 Issues Directing Large Investor-Owned Utilities to Support Affordability Through Flexible Service Connections, mailed October 20, 2026, Sections 4.1.3, 6.4.2.1, 6.4.2.2, 6.4.2.3, 6.4.2.4, 7.2.2.2, 11.1.2, 12.1, and 17; Findings of Fact 34, 41 and 42; Conclusion of Law 39; Ordering Paragraphs 4, 9, 14, 17, 18, 19, and 22

Record Documents

Pacific Gas and Electric Company, Supplemental Responses to Assigned Commissioner's Ruling Questions 20, 23 and 28, December 10, 2025

Pacific Gas and Electric Company, Customer-Owned Telemetry (COT) Procedure, TD-2306P-01 Rev 1, effective October 7, 2025

Administrative Law Judge Jack Chang, E-Mail Ruling Granting Motion for Party Status of Donald C. Jackson, November 3, 2026

Track 3 All-Party Workshop Report

Assigned Commissioner's Proposal on Flexible Service Connections, July 2026

I. INTRODUCTION

Donald C. Jackson submits these comments under Rule 14.3 on the Proposed Decision mailed October 20, 2026. Party status was granted by the e-mail ruling of Administrative Law Judge Jack Chang on November 3, 2026.

The Proposed Decision resolves the physics of flexible service connections and leaves the delivery unresolved. A customer cannot respond to an operating envelope that never reaches

equipment the customer controls, and cannot shop for a technology provider if the limit governing their service is held by the provider they are leaving.

The comments that follow identify errors in the Proposed Decision and propose corrections. The first and largest is internal: in Section 11 the Commission states conclusions that its own ordering paragraphs do not carry out.

II. THE ORDERING PARAGRAPHS DO NOT CARRY OUT SECTION 11

A. Ordering Paragraph 18 Omits the Workshop Report That Section 11.1.2 Requires

Section 11.1.2 states, at page 128:

> The workshop report and link to the recording shall be served to the most recent service list for the following proceedings: this proceeding (R.21-06-017); the Data Access and Cost Effectiveness Rulemaking (R.22-11-013); the Energization Rulemaking (R.24-01-018); and any successor to this proceeding.

Ordering Paragraph 18 orders something narrower. It directs the utilities to host the workshop, to record it, to provide the recording to Energy Division staff for posting, and to "serve the service list of this rulemaking with the link to the webpage where the recording can be found." There is no workshop report. Two of the four service lists named in the discussion are absent.

The difference matters because the Proposed Decision treats its other workshops differently. Ordering Paragraph 14 requires a workshop report within sixty days, requires that the report "address all of the topics covered in the workshop, summarize stakeholder feedback and presentations," and requires "recommendations for IOU implementation," served on six service lists. Ordering Paragraph 19 requires a report, a thirty-five day stakeholder comment round, a second workshop, and then a joint advice letter.

Of the three, the workshop on interoperability and customer choice is the only one that produces no written output and feeds no filing. A recording is not a record. Nothing in Ordering Paragraph 18 obliges anyone to write down what was decided, and nothing obliges the Commission to act on it.

Proposed correction: conform Ordering Paragraph 18 to Section 11.1.2 by requiring a workshop report and by naming the four service lists the discussion names. Proposed language is in Appendix A.

B. The Commission Has Adopted This Requirement Elsewhere in This Docket and Not Here

Section 11.1.2 states, at page 127:

> The Commission agrees with the ACP recommendation that flexible connection frameworks should not inadvertently create barriers to participation or confer undue advantages on particular technologies, vendors, or market actors. The Commission agrees with the ACP that technology and provider neutrality will help ensure wider compatibility of flexible connection frameworks.

Nothing carries that agreement forward. Finding of Fact 41 states only that "Access to both customer equipment and distribution system information may affect competition and customer choice." Conclusion of Law 39 states only that "It is reasonable for the IOUs to host a joint workshop to discuss with stakeholders how access to both customer equipment and distribution system information may affect competition and customer choice." No ordering paragraph requires technology or provider neutrality of anything.

A finding that access "may affect" competition is weaker than the discussion it is meant to support.

The Commission has not declined to adopt the requirement. It has adopted it, in this docket, three weeks earlier. Ordering Paragraph 20 of the Proposed Decision Adopting an Application Process for Utility Distributed Energy Resources Orchestration, mailed September 25, 2026 in this proceeding, orders the utilities to

> propose in their Joint Distributed Energy Resources Orchestration Application open, standardized, and interoperable communication protocols that reduce reliance on proprietary original equipment manufacturer clouds and enable grid-edge innovation. Any proposed deviation shall include justification for why open, standardized, and interoperable communication protocols will not meet the proposed needs.

Ordering Paragraph 21 of that decision further orders the utilities to address "communication barriers such as excessive access fees, limited functionality, and vendor lock-in," and Ordering

Paragraph 8 adopts eleven guiding principles for the application that include open access and interoperability, and technology neutrality.

So the question is not whether the Commission is prepared to require open and interoperable communications. It is why the requirement attaches to an application that is due in twelve months and not to the advice letters and workshops this decision orders within 90 to 120 days, which are the filings that determine what a customer can actually receive.

Proposed correction: add a finding of fact and a conclusion of law adopting technology and provider neutrality, and apply to the advice letters and workshops directed by this decision the same requirement Ordering Paragraph 20 of the September 25, 2026 proposed decision applies to the orchestration application. Proposed language is in Appendix A.

C. The Proceeding Closes, So a Workshop That Produces Nothing Written Produces Nothing

Ordering Paragraph 22 closes Rulemaking 21-06-017.

Section 11 therefore defers interoperability and customer choice to a proceeding that ends on the day the deferral is ordered. The workshop is held within ninety days, in a docket that is closed, and under Ordering Paragraph 18 it generates a recording and a hyperlink. There is no report to comment on, no advice letter it informs, and no forum in which a party may ask the Commission to act on what the workshop found.

The closure also does not sit easily beside the other proposed decision pending in this proceeding. The September 25, 2026 proposed decision states that "[t]his proceeding remains open to address Track 3 issues," and its Ordering Paragraph 3 directs that the draft working group report be submitted "to parties of this proceeding for informal comment" ten months from issuance. Decision 26-09-058 extended the statutory deadline in this proceeding to December 31, 2026. Whatever the Commission decides about closure, the two decisions should say the same thing about where the interoperability work continues and who may comment on it.

Deferring a decision is reasonable. Deferring it to a venue with no output, no filing and no decision-maker is a different thing, and the Proposed Decision does not appear to intend it: the

discussion at page 128 contemplates a report served on four service lists, including successor proceedings. Ordering Paragraph 18 is where that intent was lost.

III. THE OPERATING ENVELOPE REACHES THE TECHNOLOGY PROVIDER AND NOT THE CUSTOMER

A. The Access Path Is an Administered One

Section 4.1.3 states, at page 20:

> PG&E's Flex Connect uses IEEE 2030.5 to deliver day-ahead, hourly-interval operating limits to the customer's technology provider, to send real-time updates by exception, and to receive site telemetry.

Section 7.2.2.2 gives the size of that population. At page 76 the Proposed Decision states that PG&E "currently has three vendors who have completed interoperability certification" and that PG&E "is on track to have eight vendors certified by the end of 2026."

Taken together, a customer served by a variable operating envelope learns the limit that governs their own electric service through one of a small number of certified companies, or does not learn it at all. A customer who has no technology provider has no path to the number. A customer who wishes to change providers must weigh the loss of access to it. A customer who wishes to manage their own load against it, which Section 6.4 elsewhere treats as a legitimate choice, has no interface through which to receive it.

Delivery "over IEEE 2030.5" does not by itself put the signal within a customer's reach, because the access path is an administered one. PG&E's Customer-Owned Telemetry Procedure, TD-2306P-01 Rev 1, effective October 7, 2025, which Finding of Fact 34 identifies as part of the technical capability by which PG&E administers variable limits, requires that the customer's equipment be purchased from a list of certified-interoperable vendors, that it carry a "SunSpec PKI" issued device certificate, that its device identifier be registered with PG&E's head end in advance so that the certificate can be validated against it, and that its cipher suite be mutually agreed between the vendor and PG&E's head-end service provider. The procedure governs generating facility telemetry under Electric Rule 21, for interconnection customers whose

generation is typically one megawatt or larger, and in that setting it states a charge of $4,000 for configuring a customer-owned gateway to the PG&E server, in addition to vendor costs.

The Proposed Decision cites that procedure as part of the basis for administering variable limits. It is PG&E's published account of what attaching customer-owned equipment to its IEEE 2030.5 head end requires. The vendor certification described in Section 7.2.2.2 is a separate process, and the Proposed Decision names the governing document, the Flex Connect Technical Requirements for Telemetry and Control, without stating what it requires of a customer. A protocol whose use requires a device certificate issued under a program the utility administers, bound to a device identifier registered in advance, reaches the customer through an approved intermediary by construction. The request here is narrow: that a customer also have a path to the limit that does not depend on per-device enrollment in a utility-administered certificate program.

Ordering Paragraph 9 is a worthwhile measure and it does not address this. It standardizes the certification procedure between the utility and the vendor so that "a single aggregator platform [can] serve customers in all three territories with minimal reconfiguration," in the words of the request the Commission grants at page 75. That is interoperability among intermediaries. The Proposed Decision contains no corresponding requirement that the signal be obtainable by the customer.

Proposed correction: require that an operating envelope delivered to a customer's technology provider also be made available to the customer, in machine-readable form, over an open protocol, at a server address the customer can configure. Open protocols that carry both an operating limit and a price over the public Internet exist and are in production use today; OpenADR 3 is one, and is published and royalty-free.

B. The Credential a Residential Customer Needs Is One the Customer Already Has

A customer who takes service from an investor-owned utility already holds an authenticated relationship with it: an account, and in nearly every case credentials for the utility's website.

The Proposed Decision relies on that relationship. Ordering Paragraph 4 directs each utility to add information to its website "allowing customers the ability to enter account information, authorize any additional party that should receive this data upon their behalf, and make an

existing service data request." Section 6.4.2.2 at page 56 relies on the utilities' existing Authorization to Receive Customer Information forms, and notes that abbreviated single-signature versions of those forms already exist.

The machinery for authenticating a customer, and for recording a customer's authorization of another party, is therefore already being built under this decision. A server that publishes an operating envelope and a price is a web server with a specialized back end, and the credential needed to read from it can be issued through that same account: either the website credentials themselves, or a credential the customer obtains by authenticating with them.

A device certificate issued under a managed public key infrastructure, bound to a device identifier registered in advance, is a reasonable requirement for a one megawatt interconnection, where a professional installer, an interconnection agreement and an engineering review are already in the path. It is not a reasonable requirement behind the meter at a house, where none of those exist. Imposing the same credential at both scales does not make the residential case secure. It makes the residential case not happen, which is what the count of certified vendors in Section 7.2.2.2 reflects.

Proposed correction: direct that the enrollment path and the credential type by which a customer receives an operating envelope or a price be proportionate to the customer, and that for residential and small commercial customers the credential be obtainable through the customer's existing utility account.

IV. THE RECORD SHOWS LOCAL DELIVERY IS PRACTICABLE, AND ORDERING PARAGRAPH 17 ALREADY ASKS THE QUESTION

Pacific Gas and Electric Company's supplemental response of December 10, 2025 describes an application hosted on an AMI 2.0 meter that connects locally to the customer's electric vehicle charger or smart panel and sends a real-time dynamic limit, and identifies the local protocols it would use for that purpose. The utility has selected local, open protocols for its own Grid Edge DERMS work. The Proposed Decision neither records this capability nor establishes that a customer may rely on it.

The Proposed Decision is already asking the right question of the same programs. Ordering Paragraph 17(a) directs that the Grid Edge DERMS advice letters "propose clear, technology neutral criteria for equipment eligibility" and that the utilities "describe the solution's architecture and identify which components of the architecture (e.g., metering, communications, control logic) are proprietary and which are built on open standards." Ordering Paragraph 17(b) directs them to describe "what role third parties potentially can play to provide functionally equivalent Grid Edge DERMS services."

Both subsections ask whether the architecture is open and who else may build on it. Neither asks whether the customer may receive the signal directly.

Whether the function runs in a meter, in a utility system, or in equipment the customer owns is secondary. A meter that receives an operating limit and republishes it on the customer's local network over an open protocol is carrying the signal, not managing the customer's energy. The route into the premises matters less than whether the signal arrives somewhere the customer's own equipment can read it. What the advice letters should have to answer is whether the customer can receive it, because that is what determines whether the customer can act on it.

Proposed correction: add a subsection to Ordering Paragraph 17 directing each utility to state, in its Grid Edge DERMS advice letter, whether a customer may receive the operating limit directly from the utility without a program administrator, an aggregator, or a manufacturer's cloud service in the path, and by what protocol.

V. THE DATA ORDERED BY ORDERING PARAGRAPH 4 SHOULD BE MACHINE-READABLE

Ordering Paragraph 4 requires the utilities to provide five data fields to customers or authorized third parties within thirty days of a request: demand load, metered demand, secondary transformer capacity, capacity limiting factor, and service conductor capacity. Those are the right five, for the reasons given in Section 6.4.2.1 at page 55.

The delivery mechanism is a website form. Section 6.4.2.3 at page 56 directs the utilities to add information to their websites, to let customers enter account information and authorize a third party, and to respond "within thirty days of a valid request." Equipment cannot read a web form.

A value that changes cannot arrive on a thirty-day cycle. A customer who installs a power control system to hold a site under a limit must know the limiting value, and the Proposed Decision provides it in a format no control system can consume.

The Proposed Decision anticipates the failure. Section 6.4.2.4 at page 57 provides that "[i]f the IOU fails to respond to a customer's request for data... in the required 30 days, the customer may also calculate their demand load." A fallback is built on the premise that the mechanism will sometimes not work.

The authorization machinery for a machine-readable path already exists in the decision. Section 6.4.2.2 at page 56 relies on the utilities' existing Authorization to Receive Customer Information forms and notes that abbreviated single-signature versions exist. The same authorization that lets a third party request the data on paper can let the customer's own equipment, or an authorized agent, retrieve it over an interface.

Proposed correction: direct that the same five values also be available through a documented, machine-readable interface to the customer or an authorized third party, using the existing customer authorization, and that each utility describe that interface in its implementation advice letter.

VI. THE PRICE AND THE LIMIT SHOULD ARRIVE ON ONE PATH

Section 12.1 declines to default operating envelope customers onto a real-time pricing rate, on the basis reflected in Finding of Fact 42 that default enrollment "may deter customers who would otherwise be interested in taking service under an FSC offering at this time."

These comments take no position on default enrollment. The point is narrower. A customer managing load against a capacity limit needs to know what power costs at the same time they need to know how much they may draw, and the two values should be obtainable through the same interface rather than two unrelated ones. The Proposed Decision's own framing at page 128 is that the two signals "can be complementary." Complementary signals delivered by unrelated mechanisms are harder to act on than the decision assumes.

Proposed correction: direct that where a utility publishes an operating envelope to a customer, it publish the applicable price through the same interface.

VII. SECTION 17 MUST SUMMARIZE THE PUBLIC COMMENT FILED NOVEMBER 2, 2026

Section 17 at page 155 states that "[o]ne public comment was filed that is relevant to this decision" and summarizes it as urging support for faster energization of housing.

A second public comment relevant to this decision was submitted under Rule 1.18 on November 2, 2026, after the Proposed Decision was mailed. It addresses the delivery of the operating envelope and the price to the customer, the machine-readability of the Ordering Paragraph 4 data, and the scope of the workshops directed by Ordering Paragraphs 9 and 18.

Rule 1.18(b) requires that relevant written public comment be summarized in the final decision. Section 17 as written does not account for it.

Proposed correction: update Section 17 to summarize the public comment submitted November 2, 2026.

VIII. ERRATA

Four references to "Section 6.4.3," at pages 56, 57 and 58, point to a section that does not exist. The data fields they refer to are enumerated in Section 6.4.2.1 at page 55. The references appear in Section 6.4.2.2 at page 56, twice in Section 6.4.2.3 at page 56, and in Section 6.4.2.4 at page 58.

IX. CONCLUSION

The Proposed Decision advances affordability by letting customers connect on available capacity rather than paying for an upgrade. That bargain depends on the customer being able to see and act on the limit they have agreed to. Mr. Jackson respectfully requests that the Commission adopt the corrections set out above and in Appendix A.

Dated: November 9, 2026

Respectfully submitted,

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APPENDIX A: PROPOSED FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDERING PARAGRAPH LANGUAGE

Proposed Findings of Fact

Proposed Finding of Fact A. An operating envelope delivered only to a customer's technology provider is not available to a customer who has no technology provider, and is not available to a customer during or after a change of technology provider.

Proposed Finding of Fact B. Data furnished only by web form within thirty days of a request cannot be read by customer equipment and cannot convey a value that changes more often than it is requested.

Proposed Finding of Fact C. Open protocols capable of carrying both an operating limit and a price over the public Internet to customer equipment are published and in production use.

Proposed Finding of Fact D. A communications path that requires a device certificate issued under a utility-administered program, bound to a device identifier registered with the utility in advance, is available to a customer only through equipment the utility has certified.

Proposed Finding of Fact E. Equipment that receives an operating limit and republishes it on the customer's local network over an open protocol delivers the signal to the customer, and does not thereby manage the customer's energy use.

Proposed Conclusions of Law

Proposed Conclusion of Law A. It is reasonable to require that flexible connection offerings be technology neutral and provider neutral, and not merely to discuss technology and provider neutrality in a workshop.

Proposed Conclusion of Law B. It is reasonable to require that an operating envelope delivered to a customer's technology provider also be made available to the customer, in machine-readable form, over an open protocol, at a server address the customer can configure.

Proposed Conclusion of Law C. It is reasonable to require that the data fields identified in Ordering Paragraph 4 also be available through a documented, machine-readable interface.

Proposed Conclusion of Law D. It is reasonable to require that the enrollment path and the credential type by which a customer receives an operating envelope or a price be proportionate to the customer, and that for residential and small commercial customers the credential be obtainable through the customer's existing utility account.

Proposed Modification to Ordering Paragraph 18

Add to the end of Ordering Paragraph 18:

> The IOUs shall develop a workshop report within 60 days of the workshop. The workshop shall be coordinated with, and its report furnished to, the working group meeting series directed by the Commission's decision on utility distributed energy resources orchestration in this proceeding, whose topic areas include interoperability, distribution system operator visibility, and dispatch and control. The workshop report must address all of the topics covered in the workshop, summarize stakeholder feedback and presentations provided at the workshop, and include recommendations regarding interoperability, customer choice, and local control. The IOUs shall serve the workshop report and the link to the recording on the most recent service list for each of the following proceedings: this proceeding (Rulemaking 21-06-017); the Data Access and Cost Effectiveness Rulemaking (Rulemaking 22-11-013); the Energization Rulemaking (Rulemaking 24-01-018); and any successor to this proceeding. The workshop shall address by what open protocol an operating envelope and a price reach a customer's equipment, and whether a customer may obtain both without a program administrator, an aggregator, or a manufacturer's cloud service in the path.

Proposed Addition to Ordering Paragraph 4

Add to the end of Ordering Paragraph 4:

> Each IOU shall also make the same data fields available to the customer, or to a third party the customer authorizes through the IOU's existing Authorization to Receive Customer Information form, through a documented, machine-readable interface. Each IOU shall describe that interface in its High Distributed Energy Resources Flexible Service Connection Implementation Advice Letter.

Proposed Addition to Ordering Paragraph 17

Add as a new subsection to Ordering Paragraph 17:

> Each IOU shall state whether a customer may receive the operating limit directly from the IOU, without a program administrator, an aggregator, or a manufacturer's cloud service in the path, and shall identify the protocol by which

the customer would receive it and the credential the customer would need to obtain. Where the IOU's architecture delivers the limit to premises equipment, the IOU shall state whether that equipment republishes the limit on the customer's local network over an open protocol. For residential and small commercial customers, the credential shall be obtainable through the customer's existing utility account.